



File No.: EXP202305756

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) on January 2, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against the individual identified as the neighboring party B.B.B. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the property adjacent to the respective properties of the complained parties and that these parties have surveillance cameras on their properties, which are clearly oriented towards the complainant's property, without having authorized such image capture. The complainant provides reports filed with the Civil Guard and a statement made in court regarding the claimed facts, as well as images of the location of the cameras and the affected areas.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on 01/02/23 and 24/03/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered on the date and in the manner as recorded in the acknowledgment of receipt in the file. No response has been received regarding the facts subject to forwarding, nor has the legality of the system subject to the complaint been justified.

THIRD: On April 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed.

Therefore, taking into account that the complained party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SIXTH: Upon consulting the database of this Agency, it is confirmed by the Official Postal Service that the Initiation Agreement was to the indicated address on 30/06/23.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

First: The facts arise from the complaint dated 02/01/23 through which the following facts are conveyed:

(...) they have surveillance cameras on their properties, which are clearly oriented towards the complainant's property, without having authorized such image capture ...

The complainant provides reports filed with the Civil Guard and a statement made in court regarding the claimed facts, as well as images of the location of the cameras and the affected areas.

Second: It is confirmed that the main responsible party is Ms. B.B.B., with DNI associated ***NIF.1.

Third: It is confirmed that the installed system is not properly informed indicating that it is a video-surveillance area.

Fourth: It is confirmed that there are image capture devices present, which are poorly oriented towards adjacent areas without justified cause.

Fifth: No statement has been made regarding the legality of the system despite the Initiation Agreement of the present procedure being notified.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

"The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it shall lapse, and consequently, the proceedings shall be archived."

II

In the present case, the complaint dated 02/01/23 is examined, through which this Agency is informed of the "installation of security cameras that may affect the adjoining private area" without justified cause.

Documentary evidence (Annex I) is provided, which certifies the presence of at least one operational pilot device oriented towards the claimant's private area.

Initially, the content of Article 5.1(c) GDPR is considered affected, which states: "Personal data shall be: c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

It should be noted that individuals are responsible for ensuring that the installed systems comply with

current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be directed towards the private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of public roads or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps, complying with the requirements of LO 4/1997, August 4.

The installed cameras must be suitable for the intended purpose, that is, protection of the main access to the residential area, avoiding affecting the privacy of neighbors or nearby homes, which are impacted by the recording of images.

In the case of fake cameras, it must also be demonstrated, providing the necessary documentation to prove this to this agency (e.g., purchase receipt, invoice, etc.).

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the party complained against has proceeded to install a series of recording devices that are affecting the private area, violating the current regulations.

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years," particularly the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement attributable to the party complained against, for violating the content of Article 5.1(c) GDPR, as previously mentioned.

IV

In the complaint letter, the "absence of informative signs" is stated, violating the current regulations regarding the installation of the video surveillance system.

Article 22, section 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be understood to be fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the

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possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the information device."

The aforementioned facts constitute a violation of the content of Article 13 of the GDPR, as there are no informative signs with an effective address to which one can direct inquiries or indicate, if applicable, the main data controller.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data are obtained:

a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of data subjects under Articles 12 to 22 (...).

In determining the sanction, it is taken into account that various devices have been installed that disproportionately affect private areas of neighboring property, processing an indeterminate number of personal data, and that there is no informative sign indicating that it is a video-surveillance area, considering the conduct as grossly negligent, which justifies a sanction of €600 (€300 + €300), a sanction situated at the lower end of the scale for such conduct, based on the two infringements analyzed by this agency.

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The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGGD.

Among the measures to be adopted, the withdrawal and/or reorientation of the cameras may be ordered, as well as the placement of an informative sign indicating that it is a .

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Ms. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €600.

SECOND: TO NOTIFY this resolution to B.B.B..

THIRD: TO ORDER Ms. B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 15 working days, prove that she has complied with the following measures:

- Prove the legality of the system by providing a screenshot (date and time) of what is captured by the installed camera(s).

- Provide a photograph with date and time proving the existence of a video-surveillance area sign in accordance with current regulations.

FOURTH: To warn the sanctioned party that she must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the

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bank account CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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